
8:30 a.m. Law and Motion

IN RE: BEHNKE

CASE NUMBER: 26CV-0211150

Tentative Ruling on Petition for Change of Name: Petitioner Claudya June Behnke seeks to change her name to C.J. Bunny Behnke. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

Tentative Ruling on Three Petitions to Approve Minor Compromise: Ashish Christian seeks an order approving the compromise of claim on behalf of his minor son Josiah Christian. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minor's injuries and full recovery, the Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 7, 2026, to Petitioner and Counsel for failure to appear at the July 27, 2026 hearing. Counsel has submitted a Declaration in response to the OSC which explains the failure to appear. The OSC is **DISHCHARGED**. No sanctions will be imposed.

CLARK VS. HAYS

CASE NUMBER: 26CVG-01400

Tentative Ruling on Demurrer and Motion to Strike: Defendant Irina Hays demurs to the first and second causes of action in the Complaint, and moves to strike Item 5, 6, Attachment BC-2 and the alleged interest commencement date. Plaintiff opposes the demurrer and motion to strike.

Standard for Demurrer A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of

ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

First Cause of Action – Breach of Contract. To state a cause of action for breach of contract, Plaintiff must allege: (1) the existence of a contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damages to the plaintiff. *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal. App. 5th 1214.

Plaintiff has adequately alleged the existence of a contract (attached as Exhibit A), as well as Plaintiff's performance, defendant's breach by failure to pay attorney fees when billed, and resulting damages of \$18,290.67. Plaintiff has adequately stated a cause of action for breach of contract. The Demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action – Common Counts. Plaintiff's Opposition to the Demurrer states that there is only one cause of action alleged – for breach of contract – in his Complaint. He argues "The other two complaints that were checked have a line drawn through them, effectively leaving only one cause of action for Breach of Contract." Plaintiff further explains that this line may not have been visible in the photocopy. The Court has reviewed its copy of the Complaint and finds that it currently alleges both Breach of Contract and Common Counts at Item 8. Based on Plaintiff's Opposition, it appears that this is unintentional. The Demurrer to the second cause of action is **SUSTAINED** with leave to amend. Plaintiff is ordered to file a First Amended Complaint to correct the error.

Standard for Motion to Strike A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Defendant moves to strike Items 5 and 6 of the form pleading, Attachment BC-2, as well as allegations she argues are inconsistent or factually unsupported. These items and allegations are not irrelevant, false, or improper matter. Defendant will have the opportunity to defend the merits of the case at a later stage. Here, the pleadings are drawn in conformity with the law and the Motion to Strike is **DENIED**.

Notice of Client's Right to Fee Arbitration Business and Professions Code section 6201(a) requires an attorney to give written notice of a client's right to arbitration of attorney-client fee disputes. Failure to do so is a ground for dismissal of the action. Here, Plaintiff has not provided any evidence of compliance with BPC § 6201(a). The Complaint does not allege compliance. The mandatory California State Bar Form is not attached to the Complaint. Plaintiff is ordered to file a First Amended Complaint which properly alleges compliance with this statute, including proof of service of the required Notice.

The Demurrer is **SUSTAINED** in part and **OVERRULED** in part as detailed above and the Motion to Strike is **DENIED**. Plaintiff is ordered to file and serve a First Amended Complaint within 30 days of today's date which corrects the defects noted above, specifically: 1) amending

to remove the Second Cause of Action for Common Counts, and 2) alleging compliance with the required Notice of Client's Right to Fee Arbitration. This matter is set for review regarding status of amended complaint on **Monday, October 19, 2026 at 9:00 a.m. in Department 64.**

IN RE COTTRELL

CASE NUMBER: 26CV-0211177

Tentative Ruling on Petition for Change of Name: Petitioner Richard Cottrell seeks to change the name of his minor son. Proof of publication has been filed. When a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. This matter is continued to **Monday, November 16, 2026, at 8:30 a.m. in Department 64** to permit service on the mother. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the mother at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

DEBT MGMT VS. KEOMORAKOTH

CASE NUMBER: CVG21-0000801

Tentative Ruling on Claim of Exemption: Judgment Debtor Thandarr Keomorakoth claims an exemption from wage garnishment on the basis that their earnings are needed to support themselves and their family. Claimant has provided a completed Financial Statement which provides their income and monthly expenses.

Pursuant to Federal Law, 75% of disposable income is automatically exempt (i.e. the maximum that can be withheld is 25% of disposable income). 15 USC § 1673(a). Section 1672(b) of Title 15 of the United States Code defines "disposable earnings" as "that part of the earnings of any individual remaining after the deduction from those earnings of any amounts required by law to be withheld." CCP § 706.011 provides an almost identical definition. California permits the exemption of all income that a judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family. CCP § 706.051(b). Finally, it should be noted that the judgment debtor has the burden of proof. CCP § 703.580. The evidentiary support for a wage garnishment exemption is typically found in the required Financial Statement.

The Financial Statement shows that Claimant has three dependents. Their claimed expenses fall slightly below their monthly take home pay. However, the Court finds that the claimed expenses are excessive. Therefore, the Court will subtract \$200 from phone/utilities, \$100 from transportation, \$100 from laundry/cleaning, and \$200 from childcare. Under the new calculation, Claimant's monthly expenses total \$4,649 which means that they have \$651.12 in disposable income. Pursuant to statute, 25% of that may be withheld, so garnishment will be permitted in the amount of \$162.78 per month.

The Claim of Exemption is **GRANTED** and garnishment shall be limited to \$162.78 monthly. Judgment Creditor did not submit a proposed Order Determining Claim of Exemption. Judgment Creditor is directed to submit the proposed Order for execution.